RESOLUTION NO. R2M26-20

A RESOLUTION OF THE ALHAMBRA CITY COUNCIL REQUESTING THE BOARD OF SUPERVISORS OF THE COUNTY OF LOS ANGELES TO ORDER THE CONSOLIDATION OF AN ALHAMBRA GENERAL MUNICIPAL ELECTION TO BE HELD ON NOVEMBER 3, 2026 WITH THE STATEWIDE GENERAL ELECTION TO BE HELD IN LOS ANGELES COUNTY THE SAME DAY, TO AUTHORIZE THE BOARD OF SUPERVISORS OF THE COUNTY OF LOS ANGELES TO CANVASS THE RETURNS OF SAID GENERAL MUNICIPAL ELECTION AND TO REQUEST THAT THE REGISTRAR OF VOTERS OF SAID COUNTY BE PERMITTED TO RENDER SPECIFIED SERVICES TO THE CITY OF ALHAMBRA RELATING TO THE CONDUCT OF SAID GENERAL MUNICIPAL ELECTION PURSUANT TO ELECTIONS CODE SECTION 10403

WHEREAS, a General Municipal Election has been called by the City of Alhambra to be held in the City of Alhambra on November 3, 2026 for three City Council seats via Ordinance No. O2M26-4859; and for a Ballot Measure to approve a ban on data centers via Ordinance No. O2M26-4868; and for a Ballot Measure to Amend the City's Transient Occupancy Tax via Ordinance No. O2M26-4865; and,

WHEREAS, a Statewide General Election to be held in Los Angeles County has been or will be called to be held on November 3, 2026; and,

WHEREAS, it is desired, pursuant to the authority found in Elections Code section 10403, to consolidate said Alhambra General Municipal Election with said Statewide General Election to be held in Los Angeles County and that the Alhambra City Council has already made such request for the Alhambra City Council seats via Resolution No. R2M26-10; and for the Ballot Measure to ban data centers via Resolution No. R2M26-26; and now wishes to request consolidation with respect to the vote on one additional ballot measures as described herein.

NOW, THEREFORE, BE IT RESOLVED by the Alhambra City Council as follows:

SECTION 1: The Board of Supervisors of the County of Los Angeles is hereby respectfully requested to order the consolidation of said Alhambra General Municipal Election to be held on November 3, 2026, with the Statewide General Election to be held in Los Angeles County on November 3, 2026.

SECTION 2: The Board of Supervisors of the County of Los Angeles is hereby further respectfully requested to place on the same ballot as that provided for said Statewide General Election to be held in Los Angeles County on November 3, 2026, the following Ballot Measure concerning an amendment to Chapter 5.70 of the Alhambra Municipal Code pertaining to transient occupancy taxes to appear on the ballot as follows:

Modernization/No Tax Rate Increase Measure. To maintain city services, such as: Fire protection, paramedic, 911 emergency response, crime prevention and keeping streets, infrastructure, and parks safe and well-maintained shall City of Alhambra's measure modernizing the hotel/motel transient occupancy tax be adopted at the current	YES	
	NO	

12% rate for stays up to 30 days to include short-term lodging, providing an additional $134,000 annually for city services until ended by voters, with all money locally controlled?		

Which measure shall be submitted to the electors of the City of Alhambra at said Alhambra General Municipal Election. The proposed complete text of the Ballot Measure Ordinance submitted to the voters is attached hereto as Exhibit A. The vote requirement for the measure to pass is a majority (50% + 1) of the votes cast.

SECTION 3: The City of Alhambra acknowledges that the consolidated election will be held and conducted in the manner prescribed in Section 10418 of the Elections Code.

SECTION 4: The Board of Supervisors of the County of Los Angeles is hereby authorized and respectfully requested to canvass the returns of said Alhambra General Municipal Election.

SECTION 5: The Board of Supervisors of the County of Los Angeles is hereby authorized and respectfully requested to authorize and permit the Registrar of Voters of the County of Los Angeles to:

a) Print and supply ballots for said Alhambra General Municipal Election;

b) Mail the City's sample ballots to the registered voters in the City of Alhambra in the same envelopes as are used for mailing sample ballots to the voters for the Statewide General Election to be held in Los Angeles County; and

c) Perform such other and further services as may be required for the consolidation and conduct of said Alhambra General Municipal Election with said Statewide General Election to be held in Los Angeles County.

SECTION 6: The City shall reimburse the County in full for the services performed on behalf of the City upon the presentation of a bill by the County.

SECTION 7: The City Clerk is hereby directed to transmit a certified copy of this resolution to the Board of Supervisors of the County of Los Angeles and to the Registrar of Voters of the County of Los Angeles.

Signed and approved this 27th day of July, 2026.

JEFFREY K. MALONEY, Mayor

ATTEST:

City Clerk

CITY OF ALHAMBRA INCORPORATED JULY 11, 1903 CALIFORNIA

I HEREBY CERTIFY that the above and foregoing resolution was duly passed and adopted by the Alhambra City Council at its meeting held on the 27th day of July 2026, by the following vote, to wit:

AYES: LEE, MAZA, WANG, ANDRADE-STADLER, MALONEY
NOES: NONE
ABSENT: NONE

City Clerk

Exhibit A
(Ballot Measure Ordinance)

Ordinance No. O2M26-4866

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF ALHAMBRA AMENDING ALHAMBRA MUNICIPAL CODE CHAPTER 5.70 (TRANSIENT OCCUPANCY TAX) TO UPDATE THE DEFINITION OF HOTELS SUBJECT TO THE TAX TO INCLUDE ALL SHORT-TERM RENTALS OF 30 DAYS OR LESS, AND TO INCREASE THE LENGTH OF TIME FOR TEMPORARY STAYS AT HOTELS SUBJECT TO THE TAX FROM 21 DAYS TO 30 DAYS

THE PEOPLE OF THE CITY OF ALHAMBRA DO ORDAIN AS FOLLOWS:

SECTION 1. AMENDMENT. Alhambra Municipal Code Chapter 5.70, Section 5.70.010, is hereby amended to repeal the definition of "Hotel" and to adopt a new definition to replace it with the text set forth below. To illustrate the change in the definition that is authorized by this ordinance, Exhibit A (Strikethrough Amendments) shows additions by underline and shows deletions by ~~strikethrough~~. As amended by this ordinance the definition of "Hotel" is as follows:

> "***HOTEL.*** Any facility occupied (or intended or designed for occupancy) by transients for dwelling, lodging or sleeping purposes, including any hotel, motel, inn, short-term rental of a residential dwelling unit, tourist home or house, studio hotel, bachelor hotel, lodging house, rooming house, apartment house, dormitory, public or private club, mobile home or house trailer at a fixed location, vehicle or space at a campground, or other similar structure or portion thereof."

SECTION 2. AMENDMENT. Alhambra Municipal Code Chapter 5.70, Section 5.70.010, is hereby amended to repeal the definition of "Transient" and to adopt a new definition to replace it with the text set forth below. To illustrate the change in the definition that is authorized by this ordinance, Exhibit A (Strikethrough Amendments) shows additions by underline and shows deletions by ~~strikethrough~~. As amended by this ordinance the definition of "Transient" is as follows:

> ***"TRANSIENT.*** Any person who exercises occupancy or is entitled to occupancy by reason of concession, permit, right of access, license or other agreement for a period of 30 consecutive calendar days or less, counting portions of calendar days as full days. Any such person so occupying space in a hotel or motel shall be deemed to be a transient until the period of 31 days has expired unless there is an agreement in writing between the operator and the occupant providing for a longer period of occupancy."

SECTION 3. SCOPE OF AMENDMENTS. Unless specifically amended by this ordinance, all other provisions of Alhambra Municipal Code Chapter 5.70 remain unchanged.

SECTION 4. GENERAL TAX. The proceeds from the tax imposed by Alhambra Municipal Code Chapter 5.70 shall be for unrestricted general revenue purposes of the City and shall be placed into the General Fund of the City.

SECTION 5. FUTURE AMENDMENTS. Pursuant to California Elections Code Section 9217, the City Council is authorized to amend Alhambra Municipal Code Chapter 5.70 without a vote of the electorate; provided however, that no such amendment shall increase the rate of the tax imposed as set forth in Alhambra Municipal Code section 5.70.020.

SECTION 6. SEVERABILITY. The City Council declares that, should any provision, section; paragraph, sentence or word of this Ordinance be rendered or declared invalid by any final court action in a court of competent jurisdiction, or by reason of any preemptive legislation, the remaining provisions, sections, paragraphs, sentences and words of this Ordinance shall remain in full force and effect.

SECTION 7. CEQA. The City Council finds that this Ordinance is not subject to environmental review under the California Environmental Quality Act ("CEQA") because the Ordinance is an activity that is excluded from the definition of a project by Public Resources Code sections 21065 and 21080(b)(8) and California Code of Regulations Sections 15273 and 15378(b) (the "CEQA Guidelines"). The proposed Ordinance includes organizational or administrative activities of government which will not result in direct or indirect physical changes to the environment and are exempt from CEQA under CEQA Guidelines Sections 15060(c)(2) and 15061(b)(3).

SECTION 8. EFFECTIVE DATE. This ordinance relates to the levying and collecting of City transient occupancy taxes and shall take effect immediately upon approval by the majority of the electorate.

SECTION 9. TERMINATION DATE. The authority to levy the tax imposed by this ordinance shall expire upon an action to terminate as authorized by majority vote of the qualified electors of the City of Alhambra.

SECTION 10. CERTIFICATION AND PUBLICATION. The City Clerk shall certify to the passage and adoption of this Ordinance and to its approval by the Mayor and shall cause the same to be published according to law.

PASSED AND ADOPTED by the people of the City of Alhambra on November 3, 2026.

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Adele Andrade-Stadler, Mayor

ATTEST:

_____

City Clerk

Exhibit A to Ordinance No. O2M26-4866
Strikethrough Amendments

The text set forth below illustrates the changes to the definitions of "Hotel" and "Transient" that are authorized by this ordinance by showing additions to the definitions by underline and showing deletions to the definitions by ~~strikethrough~~.

"***HOTEL.*** Any facility occupied (or intended or designed for occupancy) by transients for dwelling, lodging or sleeping purposes, including any hotel, motel, inn, short-term rental of a residential dwelling unit, tourist home or house, studio hotel, bachelor hotel, lodging house, rooming house, apartment house, dormitory, public or private club, mobile home or house trailer at a fixed location, vehicle or space at a campground, or other similar structure or portion thereof."

"***TRANSIENT.*** Any person who exercises occupancy or is entitled to occupancy by reason of concession, permit, right of access, license or other agreement for a period of 30 consecutive calendar days or less, counting portions of calendar days as full days. Any such person so occupying space in a hotel or motel shall be deemed to be a transient until the period of 31 days has expired unless there is an agreement in writing between the operator and the occupant providing for a longer period of occupancy."